

NAME AND ADDRESS OF COURT:

SMALL CLAIMS CASE NO.:

SC-136

FOR COURT USE ONLY

PLAINTIFF/DEMANDANTE (name and street address of each):

Telephone No.:

DEFENDANT/DEMANDADO (name and street address of each):

Telephone No.:

See attached sheet for additional plaintiffs and defendants.

**ORDER TO PRODUCE FINANCIAL STATEMENT
OR APPEAR FOR EXAMINATION—CONSUMER DEBT
(Small Claims)**

Instructions to the judgment creditor (the party who won the case and is owed money) for completing this form:

- Use this form if you are a judgment creditor in a small claims case and *Notice of Entry of Judgment* (form SC-130 or SC-200) says the judgment includes an amount concerning consumer debt.
- Complete the application on page 2 to ask the court to require the judgment debtor (the person or business that lost the case and owes money) to come to court with a completed *Judgment Debtor's Statement of Assets* (form SC-133) and answer questions about their money and property.
- Read *What to Do After the Court Decides Your Small Claims Case* (form SC-200-INFO) for help choosing the correct form and for information about steps you must take after the court decides your case.

1. TO JUDGMENT DEBTOR (name):

2. YOU ARE ORDERED

- a. to pay the judgment and file proof of payment (a canceled check or money order or cash receipt, and a written declaration that shows full payment of the judgment, including postjudgment costs and interest) with the court before the hearing date shown in the box below, **OR**
- b. to provide information about your money and property. You must do so by choosing one of the two options listed below:
 - (1) Serve a completed *Financial Statement—Consumer Debt* (form EJ-144) on the judgment creditor and file a completed *Notice of Financial Statement—Consumer Debt* (form EJ-143) and a proof of service for form EJ-144 with the court; **OR**
 - (2) Personally appear in this court on the date and time shown below and bring with you a completed *Judgment Debtor's Statement of Assets* (form SC-133).

If you personally appear in court, you will be required to answer questions about your money and property and explain why you did not complete and mail form SC-133 to the judgment creditor in a timely manner. (*You should have sent it within 30 days after Notice of Entry of Judgment (form SC-130) was mailed or handed to you by the clerk.*)

Hearing
Date

→ Date: _____ Time: _____
Dept.: _____ Room: _____

Name and address of court, if different from above:

3. This order may be served by a sheriff, marshal, or registered process server.

Date:

(SIGNATURE OF JUDGE)

This order must be served no less than 30 days before the date set for the examination.

IMPORTANT NOTICE ON PAGE 3



4. Judgment creditor (the person who won the case) (*name*): _____ applies for an order requiring
 judgment debtor (the person or business who lost the case and owes money) (*name*): _____
 to:
- Pay the judgment, **OR**
 - Provide information about judgment debtor's money and property by either
 - serving a completed *Financial Statement—Consumer Debt* (form EJ-144) on judgment creditor and filing a completed *Notice of Financial Statement—Consumer Debt* (form EJ-143) with the court; **OR**
 - personally appearing in this court with a completed *Judgment Debtor's Statement of Assets* (form SC-133), explaining why judgment debtor did not pay the judgment or complete and mail form SC-133 to judgment creditor within 30 days after *Notice of Entry of Judgment* (form SC-130 or SC-200) was mailed or handed to judgment debtor, and answering questions about judgment debtor's money and property.
5. I, judgment creditor, state the following:
- Judgment debtor has not paid the judgment.
 - Judgment debtor either did not file an appeal, or the appeal has been dismissed, or judgment debtor lost the appeal.
 - Judgment debtor either did not file a motion to vacate, or the motion to vacate has been denied.
 - More than 30 days have passed since *Notice of Entry of Judgment* was mailed or handed to judgment debtor.
 - I have not received a completed *Judgment Debtor's Statement of Assets* (form SC-133) from judgment debtor.
 - Judgment debtor resides or has a place of business in this county or within 150 miles of the place of examination.
6. ☐ *Notice of Entry of Judgment* (form SC-130 or SC-200) says the judgment includes an amount "concerning consumer debt (Code Civ. Proc., § 708.111)."

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

 (TYPE OR PRINT NAME)

 (DECLARANT)

INSTRUCTIONS FOR APPLICANT

Most counties are required to have a Small Claims Advisor to give free legal information in small claims cases.

- Use this form if you are a judgment creditor (the court ordered the other side to pay you money) in a small claims case, *Notice of Entry of Judgment* (form SC-130 or SC-200) says the judgment includes an amount concerning consumer debt, and the judgment was entered on or after January 1, 2025.
 - If the judgment does **not** concern consumer debt, use *Application and Order to Produce Statement of Assets and to Appear for Examination* (form SC-134) or *Application and Order for Appearance and Examination* (form EJ-125).
 - If you only want to ask the court to order the judgment debtor to come to court for an examination (answering questions about their money and property) and you do **not** want to enforce your right to receive a completed *Judgment Debtor's Statement of Assets* (form SC-133), use *Application and Order to Appear for Examination—Consumer Debt* (form EJ-141).
 - If you want to ask for a second examination of this judgment debtor, use *Application and Order to Appear for Examination—Consumer Debt* (form EJ-141). Do not use form SC-136 to ask for a second examination.
- Read *Information on Debtor's Examinations Regarding Consumer Debt* (form EJ-140-INFO) for help choosing the correct form, instructions on how to complete and file this form, and information on how the judgment debtor can respond.
- If you want to be able to ask the court to enforce the order on the judgment debtor, you must have a copy of this form and a blank copy of the forms listed below served on the judgment debtor in person by a sheriff, marshal, or registered process server at least **30 calendar days** before the date of the hearing, and have a proof of service filed with the court.
 - Judgment Debtor's Statement of Assets* (form SC-133)
 - Information on Debtor's Examinations Regarding Consumer Debt* (form EJ-140-INFO/SC-136-INFO)
 - Financial Statement—Consumer Debt* (form EJ-144)
 - Notice of Financial Statement—Consumer Debt* (form EJ-143)
 - Exemptions From the Enforcement of Judgments* (form EJ-155)
 - Current Dollar Amounts of Exemptions From Enforcement of Judgments* (form EJ-156)
- You must attend the hearing unless the judgment has been paid. Bring a copy of your completed form SC-136 with you to the hearing.



NOTICE TO JUDGMENT DEBTOR

If you fail to appear at the time and place specified in this order, the court may make an order requiring you to pay the reasonable attorney's fees and costs incurred by the judgment creditor in this proceeding.

Instead of appearing at the examination, you may file a notice of judgment debtor's financial affidavit in a form prescribed by the court (form EJ-143) and signed under penalty of perjury and serve copies of all filed documents and the financial affidavit (form EJ-144) on the judgment creditor no later than 15 days prior to the date set for the examination. (This option is the same as option 2b(1) on page 1.)



Request for Accommodations. Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to courts.ca.gov/forms for *Disability Accommodation Request* (form [MC-410](#)). (Civil Code, § 54.8.)